

STATE OF NEW YORK

4755--A

2025-2026 Regular Sessions

IN SENATE

February 12, 2025

Introduced by Sens. BAILEY, ROLISON, WEBB -- read twice and ordered printed, and when printed to be committed to the Committee on Agriculture -- recommitted to the Committee on Agriculture in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the agriculture and markets law, in relation to establishing the farm ownership succession planning program (FOSPP)

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The agriculture and markets law is amended by adding a new
2 section 323-a to read as follows:

3 § 323-a. Farm ownership succession planning program. 1. The commis-
4 sioner, in conjunction with the department of economic development and
5 the department of financial services, shall establish the farm ownership
6 succession planning program (hereinafter referred to as "the FOSPP").
7 Such program shall be established by August first, two thousand twenty-
8 seven and hold its first forum no later than October first, two thousand
9 twenty-seven.

10 2. The FOSPP shall provide farm owners with a succession planning
11 toolkit that can be used by such farm owners who are planning on selling
12 or closing their farm. Such toolkit shall include, but not be limited
13 to, the following:

14 (a) financial resources available to prospective farmers interested in
15 buying farms and farmland for the purpose of farming;

16 (b) an itemized list of all farming related education and support
17 programs in place at public and private institutions of higher learning
18 in the state;

19 (c) a list of state supported economic development funding for farming
20 and for sustaining farming;

21 (d) a list of organizations within the state and in adjoining states
22 that auction and sell farming equipment and farming supplies;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD01227-02-6

1 (e) a list of all labor laws governing farm labor; and
2 (f) a list of insurance and financial services regulations impacting
3 the sale and purchasing of farms and farmland.

4 3. The FOSPP shall develop a set of statewide live and virtual forums
5 to link and educate farmers who are planning on selling their farm
6 and/or farmland, and for prospective new farmers to learn of farming
7 business opportunities, the opportunities for purchasing farms, and on
8 the established resources to assist in selling and buying farms and
9 farmland for food production. The FOSPP shall include information on
10 other existing farming collaboratives within the state and in adjoining
11 states.

12 4. (a) The FOSPP shall provide information regarding the economic
13 viability of family farming and commercial farming, including but not
14 limited to, data on farm bankruptcies, farmer held debt, state and
15 national trends impacting the farming sector, and a profile of the New
16 York state farming sector in sub-segments, including but not limited to,
17 dairy farming, vegetable farming and fruit farming.

18 (b) The commissioner, in conjunction with the department of economic
19 development, shall establish an outreach plan to chambers of commerce
20 throughout the state, including chambers of commerce that represent all
21 segments of minority businesses within the state and the adjacent states
22 of New Jersey, Pennsylvania, Connecticut and Massachusetts, to be admin-
23 istered through the department of economic development. Such outreach
24 plan shall be submitted to the governor, the legislature and the chief
25 diversity officer of the state of New York no later than August first,
26 two thousand twenty-seven.

27 5. (a) The commissioner, in conjunction with the superintendent of
28 financial services, is authorized to establish a diversity in farming
29 farm ownership succession planning advisory task force in order to
30 assist in ensuring that the FOSPP is reaching prospective farmers and
31 farming entrepreneurs who are from the list of currently protected
32 classes in the state of New York.

33 (b) The commissioner, or the designee of such commissioner, shall be
34 the chairperson of the task force. Such task force shall consist of ten
35 members and shall include members of the itemized protected classes who
36 have the ability to help promote the FOSPP within communities of such
37 protected classes. The commissioner, the commissioner of the department
38 of economic development and the superintendent of financial services
39 shall appoint one member each. Such task force shall be established and
40 named within one hundred twenty days of the effective date of this
41 section.

42 § 2. This act shall take effect immediately.